

M/S Shah Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. And Others

High Court of Judicature at Allahabad · Division Bench · 3 July 2023 · 2023:AHC:130232-DB · WRIT - C No. 57550 of 2012 · **Writ petition dismissed for want of prosecution; interim order vacated.**

HEADNOTE

A consumer who had opted for a pre-payment meter challenged a 29 September 2012 additional-security demand as illegal under Section 47(5) of the Electricity Act, 2003, and attacked Clause 4.20(l) of the U.P. Electricity Supply Code, 2005 as ultra vires that sub-section, also relying on the absence of Section 181(2)(v) regulations and on Section 174. On 10 December 2012 the Division Bench connected the writ with M/s Supreme Ceramics Limited (W.P. No. 51844 of 2009) and other similar petitions, and stayed the demand on an undertaking to furnish the security if the writ failed. On 3 July 2023, none appearing for the petitioner even in the revised call, the writ was dismissed for want of prosecution and the interim order vacated. The Section 47 / Clause 4.20(l) questions were not decided.

FACTUAL SUMMARY

M/S Shah Concast Pvt. Ltd. challenged Paschimanchal Vidyut Vitran Nigam Ltd.'s demand of additional security in a bill dated 29 September 2012. It said it had opted for a pre-payment meter, so the demand under Section 47(2) of the Electricity Act, 2003 was illegal in view of Section 47(5); that Clause 4.20(l) of the U.P. Electricity Supply Code, 2005 was ultra vires Section 47(5); that security regulations under Section 181(2)(v) of the Act had not been framed; and that Section 174 overrode inconsistent Code provisions.

Counsel for both sides treated the controversy as the same as in Civil Misc. Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd.) and connected petitions in which interim orders had been passed. On 10 December 2012 the Court connected this writ with those petitions, issued notice, and, without prejudice, restrained the respondents from demanding the additional security if the petitioner filed an undertaking to furnish it should the writ fail. After listings from November 2012, the petition was called in the revised list on 3 July 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20(l)

additional security / pre-payment meter; writ dismissed for want of prosecution

HOLDING

On 10 December 2012 the Court recorded the petitioner's case that additional security demanded under Section 47(2) of the Electricity Act, 2003 was illegal because it had opted for a pre-payment meter (Section 47(5)), that Clause 4.20(l) of the U.P. Electricity Supply Code, 2005 was ultra vires Section 47(5), that security regulations under Section 181(2)(v) had not been framed, and that Section 174 overrode inconsistent provisions; the licensee did not dispute that the same controversy was pending in W.P. No. 51844 of 2009 and connected writs. The Court connected the petitions and, without prejudice, directed that the respondents not demand the additional security in the bill dated 29 September 2012 if the petitioner filed an undertaking to furnish it should the writ fail. On 3 July 2023, none appearing for the petitioner even in the revised call, the writ was dismissed for want of prosecution and the interim order vacated, without deciding those points.

¶ order of 10.12.2012, order of 3.7.2023

FLAG Thin procedural disposal. Order-sheet 5.11.2012–3.7.2023 (adjournments, then the 10.12.2012 interim, then dismissal). The 2023 order has no numbered paragraphs. Coram is the disposing bench (Siddhartha Varma and Arun Kumar Singh Deshwal, JJ.); the 2012 orders were Satya Poot Mehrotra and Het Singh Yadav, JJ. Clause 4.20(l) and Sections 47(2)/(5), 174 and 181(2)(v) are as invoked; they were not construed.

writ-dismissed-for-want-of-prosecution-interim-vacated After a 2012 without-prejudice stay of an additional-security demand under Section 47(2) / Clause 4.20(l) on a pre-payment-meter undertaking, the writ was dismissed for want of prosecution when none appeared even in the revised call, and the interim order was vacated, leaving the Section 47(5) and ultra vires points undecided. ¶ order of 3.7.2023

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY DEMANDED UNDER SECTION 47(2) OF THE ELECTRICITY ACT, 2003 IS ILLEGAL UNDER SECTION 47(5) WHERE THE CONSUMER HAS OPTED FOR A PRE-PAYMENT METER
Petitioner's first submission on 10.12.2012; not decided. ¶ order of 10.12.2012

NOT DECIDED — WHETHER CLAUSE 4.20(L) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 IS ULTRA VIRES SECTION 47(5) OF THE ELECTRICITY ACT, 2003
Petitioner's second submission on 10.12.2012; not decided. ¶ order of 10.12.2012

NOT DECIDED — WHETHER THE ADDITIONAL-SECURITY DEMAND FAILS BECAUSE REGULATIONS UNDER SECTION 181(2)(V) OF THE ELECTRICITY ACT, 2003 HAVE NOT BEEN FRAMED, AND WHETHER SECTION 174 OVERRIDES CLAUSE 4.20(L)
Raised on 10.12.2012; not decided. ¶ order of 10.12.2012

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Civil Misc. Writ Petition No. 51844 of 2009			Petitioner	Referred

SCJ-3123 · M/S Shah Concast Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd. And Others · 2023:AHC:130232-DB · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.